

CONTROLLED UNCLASSIFIED INFORMATION

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☐ Yes ☒ No

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at [DAFFARS 5302.101](#)? ☐ Yes ☒ No

Dollar Value of this Acquisition: ☐ ≤ \$750K ☒ > \$750K and ≤ \$15M ☐ > \$15M and ≤ \$100M ☐ > \$100M

Contracting Activity: AFNWC/NCCM

Purchase Request (if available) / Local ID Number:

Program / Project (and PE, if applicable):

Program Type (PEO, Enterprise, of Operational):

Authority:
6.302-3 – 10 USC 3204(a)(3), Industrial Mobilization; Engineering, Developmental, Research Capability; or Expert Services

Estimated Contract Cost (including options): \$ 4,000,000 J&A Type: ☐ [Class](#) ☒ Individual

COORDINATION ([DAFFARS 5306.304\(a\)](#))

Date 09 Mar 2026	Program Lead Maj James Anderson AFNWC/NCCM	Signature ANDERSON.JAMES.WIL LIAM.1294581045 Digitally signed by ANDERSON.JAMES.WILLIAM.1294581045 Date: 2026.03.09 15:27:58 -06'00'
Date	Contracting Officer William Horrigan AFNWC/NCCM (PZU)	Signature HORRIGAN.WILLIAM.M. 1521690638 Digitally signed by HORRIGAN.WILLIAM.M.1521690638 Date: 2026.03.09 15:29:18 -06'00'

APPROVAL ([DAFFARS 5306.304\(a\)](#))

Date	Contracting Officer William Horrigan AFNWC/NCCM (PZU)	Signature HORRIGAN.WILLIAM.M. 1521690638 Digitally signed by HORRIGAN.WILLIAM.M.1521690638 Date: 2026.03.09 15:29:34 -06'00'
------	---	--

Justification and Approval (J&A) for Other Than Full and Open Competition

(See "Specific Guidance for Completing this Template" after item XII below.)

I. Agency and Contracting Activity.

The Air Force Materiel Command (AFMC), Air Force Nuclear Weapons Center (AFNWC), PEO Nuclear Command, Control, and Communications (NC3), Combatant Command C2 Division (NCC), Mobile Command and Control Systems (MC2S) Branch (NCCM) Contracting Office at Peterson SFB, Colorado is the contracting organization responsible for this proposed contract action. The Procuring Contracting Officer is William Horrigan at telephone number 719-556-2776 and email william.horrigan@us.af.mil.

II. Nature and/or description of the action being approved.

This is an Individual Justification & Approval (J&A) for a single contract award. The resulting contract will most likely consist of Cost Plus Fixed Fee (CPFF) and Cost Reimbursable (CR) contract types. The effort is expected to cost approximately \$4M and the period of performance will be 18 months.

This proposed acquisition will result in a new contract to provide strategic and technical expertise to perform Analysis of Options (AoO) in support of a CAPE-directed study based on the results of the NC3 Next Trade Space Study (NNTS) Phase I. The AoO will assess materiel and non-materiel solutions to enhance capability and ability of the MC2S to perform mission essential functions (MEFs). The AoO will be at the SAP-level to evaluate the performance, schedule, risk, and cost of materiel and non-materiel solutions. This contract requires special technical expertise and support through essential capabilities provided from a University Affiliated Research Center (UARC). In accordance with FAR 35.015(b)(2), additional research was done to determine if another suitable basic agreement was already in place that could meet the requirements of AFNWC, and none were found. Of note, AFNWC/NC currently has an IDIQ in place with the Johns Hopkins University Applied Physics Lab (JHU/APL) Laurel, MD but after discussions and emails with AFNWC/PZHW, it became clear that there is insufficient PoP of only two months left on their IDIQ, so this vehicle was deemed to not be a suitable avenue to meet our requirements.

III. Description of supplies/services required to meet agency needs.

The AoO is a CAPE-directed research study. Essential research to be provided under the contract include system engineering, system of systems engineering, and enterprise system of systems engineering to analyze alternatives based on the Department of War Cost Assessment and Program Evaluation (OSW/CAPE) MC2S Study Guidance. The AoO will further include Threats and Scenarios, Cost Analysis, Effective Analysis, Technology and Alternatives, Employment Concepts, and Risk Analysis. JHU/APL provides expert engineering and technical services that focus on developing innovative strategies, concepts, and technology applicable to the MC2S platform. JHU/APL works to advance and apply science, technology, system engineering and strategy to effectively enable the Government to make better decisions and implement solutions to complex challenges of national and global significance.

The type of funds to be utilized for this contract action will be 3600 Research and Development (R&D) funds. The estimated value of the contract is \$4M.

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

This action is authorized under 10 U.S.C.2304(c)(3) as implemented by FAR 6.302-3(a)(2)(ii), which states that "full and open competition need not be provided for when it is necessary to award a contract to a particular source in order to...establish or maintain an essential engineering, research, or development capability to be provided by an educational or other non-profit institution or a federally funded research and development center."

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

A non-competitive award to JHU/APL is planned under the authority cited in paragraph IV as JHU/APL, an educational institution (UARC), is uniquely qualified and positioned to provide essential engineering research to the Government to satisfy the requirements of the AoO. There is no other private organization, non-profit, FFRDC, or UARC that holds the qualifications, technical expertise, cleared facilities, and direct and intimate knowledge of NC3 that JHU/APL can provide the Government for

Justification and Approval (J&A) for Other Than Full and Open Competition

this specific effort.

Long Term Strategic Relationship

Fostering long-term relationships between the DoW and UARCs is highly encouraged in the July 2010 "Department of Defense [War] University Affiliated Research Center Management Plan." Maintaining a continued relationship between JHU/APL and the DoW ensures that the uniquely specialized engineering capabilities essential to the NC3 mission are always current and available from a reliable source to provide quick response capabilities.

The UARC with JHU/APL was established specifically to provide objective and independent engineering support to the DoW and other Government agencies as approved. JHU/APL has extensive knowledge of systems that are established to meet the needs of the Air Force and other DoW agencies. JHU/APL's vast technology base and response capability are necessary to allow the Air Force to respond to new and high priority short-term requirements. The utilization of JHU/APL's pool of experts strengthens the Air Force's overall resource capabilities and reduces risk by providing this ready capability with experts already familiar with Air Force programs. These advantages increase the probability of achieving mission success. JHU/APL has been designated the Air Force UARC for systems engineering, modeling and simulation and integration. They provide over 75+ years as a technical advisor for DoW and 50+ years of experience with CEP assessments for the US Navy and over 20+ years of experience with CEP and JCS exercise assessments for the USAF.

JHU/APL's Extensive and Unmatched Knowledge of NC3

JHU/APL performs strategic system test and evaluation activities and provides technical engineering that directly supports strategic communications assessment programs, to include the Joint Chiefs of Staff (JCS) NC3 Assessment Program. JHU/APL has verified the ability of selected AF NC3 platforms, configuration elements and constituent systems to meet Joint Staff Nuclear Command and Control System Technical Performance Criteria (NTPC) standards. Through the AF and Navy Continuing Evaluation Program (CEP) assessment and analysis projects, JHU/APL has developed in-depth experience and performance records for more than 25 NC3 data sources across the operational spectrum, from command centers to support units.

JHU/APL's involvement across the Department of War (DoW) programs and specifically the NC3 Next Trade Space Study (NNTS) Phase I provides valuable insight into how systems are used across the Services and the DoW. This is a critical aspect necessary to meet the growing requirements for system engineering and support across the NC3 enterprise.

JHU/APL Performed the NC3 NNTS Phase I Study

The AoO is a direct action item resulting from CAPE's NNTS Phase I for which JHU/APL was contracted as the prime research partner. The tasking of the MC2S-specific AoO was directed down from CAPE to the MC2S program office for contractual and program management. Contracting the AoO to another vendor or FFRDC/UARC would bypass JHU/APL's direct and intimate knowledge of all the research and results from NNTS Phase I, leaving that vendor having to attempt to gain knowledge of DoW-wide NC3 capabilities and technology on a level comparable with JHU/APL in addition to familiarizing themselves with the Phase I study research which JHU/APL performed and delivered. Moreover, the Government would pay the duplicative cost for another vendor to learn NC3 and NNTS Phase I requirements. This cost would consume a significant amount of the \$4M budget for the AoO, leaving only a portion of the total budget for the performance of the AoO itself.

Specialized Expertise and Facilities

JHU/APL possesses an extensive breadth of capabilities and has been involved in broad programs of long-term research and development of major USAF and other DoW systems. The scope of its efforts extends across several areas of science and technology, includes many different warfare elements, and involves many types of activities, from basic research to full-scale operational system testing.

The technical staff of JHU/APL includes specialists in many scientific and engineering disciplines, as well as systems engineers who can direct teams engaged in the development of complex combat and even multiple-platform systems. Further, JHU/APL has proven capability not only in research and development, but also in the resolution of problems related to the production of systems, to the introduction of equipment into full operational status, to maintenance, and to logistics. The unique capabilities of JHU/APL stem from the body of knowledge, experience, data, and facilities established through more than a half-century of highly diversified work solving problems for the Navy and for other defense organizations.

Justification and Approval (J&A) for Other Than Full and Open Competition

JHU/APL has developed core competencies in research, development, test, and evaluation, systems innovations, integration, and engineering in support of the DoW's warfighting capabilities. The specific core competencies are provided as follows:

1. Strategic Systems Test and Evaluation. Quantitative performance evaluations of complex including ballistic and guided missile systems, C3 systems, and other related combat and weapon alternative and modified systems; collection of development of instrumentation, as appropriate. Independent operational systems strategic and tactical systems; evaluation of requisite data.
2. Simulation, Modeling, and Operations Analysis. Development, verification, validation and application of simulations, models, and operations analysis techniques to determine mission effectiveness and performance assessment of current, planned, and proposed systems; and coordination of employment of these systems.

JHU/APL will leverage its intimate NC3 knowledge for the MC2S Program Office and the AoO requirement through the ability to process Top Secret/Sensitive Compartmented Information (TS/SCI) within a TS/SCI cleared Facility for AF Nuclear, Command, Control, and Communications (NC3) work; familiarity with NC3 data sources used for JCS and CEP exercises; knowledge of using NC3 models with Defense Threat Reduction Agency (DTRA) codes incorporated; and DoW knowledge and experience.

JHU/APL as the Leading MC2S MBSE Expert

Detail regarding market research is provided in Section VII which specifies why JHU/APL was selected as the MBSE servicer for MC2S. Having JHU/APL currently working to MBSE the MC2S platform puts them in a uniquely qualified position to also accept the contract for the AoO. As the MBSE project moves forward, JHU/APL will increasingly become a technical expert on MC2S with intimate platform knowledge and its NC3 capabilities far beyond what other vendors or FFRDC/UARC peers will be capable of providing. Not only will JHU/APL be an existing organization with leading expertise in NC3, but they will also be a leading expert on MC2S after delivering the MBSE package to the program office. This provides the Government with the opportunity to leverage a circumstance where a UARC is already in place learning the platform from a technical drawing perspective down to the placement of screws. If the Government were to fail to recognize this opportunity to sole source the AoO to JHU/APL, a resulting competition or sole source to another FFRDC/UARC would incur a significant amount of schedule and labor hours to allow another vendor or FFRDC/UARC to "learn" the platform before being capable of addressing the AoO.

Conclusion

JHU/APL is uniquely qualified to fulfill the AoO requirement by being capable of providing essential research above its peers. A sole source award to JHU/APL is a UARC is supported by (1) their long term strategic relationship with the DoW, (2) their extensive and unmatched NC3 expertise, (3) JHU/APL having performed the preceding NNTS Phase I study, (4) their specialized expertise and cleared facilities, and (5) their growing status as the leading MBSE expert for MC2S.

For all the reasons stated above, JHU/APL is capable of providing essential engineering research to support the AoO that other vendors cannot match. It is the Government's most beneficial opportunity, and in the Government's best interest, to award this contract to JHU/APL under the authority cited in Section IV. Pursuing a different course of action to contract the AoO would betray logic.

A notice to industry was not publicized under exception 5.202(a)(1) as disclosure would compromise national security. Full disclosure of the agency's need would require full disclosure of the CAPE-directed AoO objectives, which are provided up to the SAP level.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The contract will be awarded after engaging in the FAR Part 15 driven evaluation and negotiation process to ensure the award results in a fair and reasonable cost to the Government. The award will undergo technical evaluation, cost analysis, price analysis, and profit/fee analysis, all of which will be supported by a certification of JHU/APL's cost or pricing data.

Furthermore, the NCCM program office has resources within AFNWC to secure historical data for same or similar services provided by JHU/APL which will be used to compare the level of effort and pricing information.

Justification and Approval (J&A) for Other Than Full and Open Competition

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

The market research included contact with Government SMEs, contact with previously known resources, meetings with vendors during trades shows, one-on-one meetings, site visits, and Internet searches. As appropriate, follow-up meetings were conducted to further collaborate and demo of the product.

Tailored research was conducted to identify vendors capable of critical systems engineering, cybersecurity and cyber-engineering, and modeling and simulation support to enhance the MC2S architecture baseline. The quality of AoO is contingent upon using Model Based System Engineering (MBSE) methodologies and an Integrated Digital Environment to facilitate the modeling and simulation to assist with the development of tech refresh projects, weapon system models, test plans, and documentation in support of program modernization efforts throughout the weapon system lifecycle. Results of these efforts will provide information, options, recommendations and developing and delivering of digital models to support program modernization decisions as well as other program actions, and ultimately facilitate integration of the MC2S capabilities with other Nuclear Command, Control, and Communications (NC3) platforms. These requirements are military unique which requires the vendor to be familiar with other similar NC3 platforms (e.g. SAOC). For these reasons, the AoO market research was heavily rooted in and based on the research conducted for the MC2S MBSE effort below.

Leidos is driving the use of Model Based System Engineering (MBSE) methodologies and Digital Engineering models to develop, test, deploy and sustain the ITW/AA mission. Leidos is currently modernizing the Missile Warning / Missile Tracking enhancements to the NORAD/NORTHCOM Legacy Combatant Command Integrated Space System (CCIC2S) C2 system for Space Systems Command. The goal of the project is to provide warfighters and users with a modern, flexible way to integrate and display data from Missile Defense Agency (MDA) as a non-traditional source (NTS) into the current Missile Warning architecture which will allow the warfighters to make informed strategic decisions. Leidos does not have experience in using MBSE to model an NC3 asset.

Booz Allen Hamilton (BAH) is leveraging Model Based System Engineering methodologies and Digital Engineering models to develop a mobile, distributed, and scalable Command, Control, and Communications (C3) kit to support NC3. Currently, BAH is using the MBSE model in the USAFE AOR to support JFACC / AOC capability and survivability gaps. BAH will be expanding the USAFE model to meet IndoPACOM environment and mission need. However, BAH does not have experience in using MBSE to model an NC3 asset.

The Air Force Research Laboratory (AFRL) Digital Capabilities Directorate provides digital collaboration to gain access to models, simulations and more to aid in future R&D efforts. AFRL's LabVerse delivers Cross-Domain capable Hybrid Multi-Cloud (CD-HMC) integrated infrastructure to accelerate the research and development mission, supports data flow, and provides foundational service capabilities across the entire workforce. Its Information Directorate focuses on Quantum Networking and Computing. While both CD-HMC and Quantum Networking / Computing may support MC2S future needs, AFRL has not presented any NC3 MBSE efforts they are currently supporting.

Johns Hopkins University Applied Physics Laboratory (JHU/APL) is a University Affiliated Research Center (UARC). UARC is a strategic United States Department of Defense (DoD) research program that is associated with a university. UARCs were established to ensure that essential engineering and technology capabilities of particular importance to the DoW are maintained. UARCs are designed to provide critical mass in research areas that meet DoW future needs and anticipated combat requirements.

JHU/APL is currently developing an MBSE model for the MC2S platform, putting JHU/APL in a uniquely qualified position to offer expert insight into the improvement and efficiencies tasked by CAPE. JHU/APL is currently leveraging MBSE SysML to conduct system engineering, cybersecurity and cyber-engineering, and modeling and simulation support to support to the create an MC2S architecture baseline. Results of these efforts will provide information, options, recommendations and developing and delivering digital models to support program modernization decisions as well as other program actions and ultimately facilitate integration of the MC2S capabilities with other Nuclear Command, Control, and Communications (NC3) platforms. Additionally, JHU/APL played a major role during the NC3 Next Trade Space Study. As the MBSE project moves forward, JHU/APL will increasingly become a technical expert on MC2S with intimate platform knowledge and its NC3 capabilities far beyond what other vendors or FFRDC/UARC peers will be capable of providing.

JHU/APL has some 7,000 employees and operates multiple TS/SCI facilities and networks. JHU/APL performs strategic system

Justification and Approval (J&A) for Other Than Full and Open Competition

test and evaluation activities and provides technical engineering that directly supports strategic communications assessment programs. They have verified the ability of selected AF NC3 platforms configuration elements and constituent systems to meet Joint Staff Nuclear Command and Control System Technical Performance Criteria (NTPC) standards. Through analysis work and other NC3 related projects, JHU/APL have developed experience with 30 relevant NC3 data sources across multiple categories for weapon platforms, command centers, and supporting elements by evaluating NC3 performance or developed metrics. In addition to those categories, they also support sensor collection and correlation activities and have extensive experience with operating and evaluating communication systems from both a performance and cybersecurity perspective. Based on JHU/APL's knowledge of and experience with various data sources and their role in the NC3 enterprise, they have developed a large set of technical capabilities such as NC3 data collection, NC3 performance analysis, NC3 mission modeling, NC3 requirements verification, NC3 reliability engineering analysis, statistical confidence interval calculations, investigation of RF physics and propagation problems, and NC2/NC3 operational expertise including prior military platform/command center/command post experience. Through the AF assessment and analysis projects, JHU/APL has developed in-depth experience and performance records for more than 25 NC3 systems across the operational spectrum from command centers to support units. In addition to providing support and analysis to exercises and assessments they also developed, a unique comprehensive NC3 modeling and simulation capability designed to provide mission-level, systems of systems analysis and prediction of NC3 performance.

The Government also contacted small businesses during the market research phase. However, small businesses do not have experience and personnel able to perform the required comprehensive NC3 modeling and simulation capability designed to provide mission-level, systems of systems analysis and prediction of NC3 performance. They would have to outsource the entirety of the effort to a third party. Similarly, most small businesses are managed IT services and integration providers. Typically, small businesses do not own the skill sets such system architecture and system engineering required to conduct a thorough Analysis of Option as related to NC3.

Our market research concludes that only JHU/APL holds the institutional knowledge in the required areas (namely, NC3), access to cutting edge research and talent pool depth in the relevant fields, and the requisite clearance levels and secured facilities to support our unique requirements. The mix of talent, skill, and experience that JHU/APL offers, in addition to the leverage they hold as our current platform MBSE servicer, renders them disproportionately qualified above other vendors in both the private sector and FFRDC/UARC communities to assume the critical tasks identified by CAPE.

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

It is reasonably expected that only an FFRDC or UARC may possess the resources and experience to fulfill the contract tasks because of their long-term experience in NC3. The results of our ongoing market research have only strengthened our continued need for a long-term relationship between the DAF and JHU/APL. The JHU/APL is the best qualified UARC and has showcased the extremely high level of capabilities necessary to perform the work. JHU/APL's experience in this area provides AFNWC MC2S Program Office the only avenue for the high level of expertise in the field required. There is no other viable method to fulfill the requirement that has extensive knowledge and experience that JHU/APL does. Based on experience, personnel, Top Secret (TS) facilities, and demonstrated performance JHU/APL provides the highest level of capabilities to provide NC3 engineering, research, analysis and development to perform Analysis of Options in support of the CAPE-directed study based on the results of the NC3 Next Trade Space Study (NNTS) Phase I.

IX. List of any sources that expressed, in writing, an interest in the acquisition.

1. Leidos: Initial discussion at AFCEA CyberSpace Symposium (12 Feb 2025); Capabilities Presentation (19 Feb 2025); Multiple e-mails (12 Feb - Apr 2025)
2. Booz Allen Hamilton (BAH): Initial discussion at AFCEA CyberSpace Symposium (12 Feb 2025); Follow-up meeting at B2025 (3 Mar 2025); Multiple e-mails exchange (12 Feb - 3 Mar 2025); Received briefing (20 Feb 2025)
3. Air Force Research Lab: Initial discussion (19 Feb 2025); Information exchange sVTC (27 Mar 2025); Multiple e-mails (19 Feb - Jul 2025)
4. JHU/APL: Initial discussion at the WSR (26 Feb 2025); Information Exchange sVTC (13 Mar 2025); Multiple e-mails (4 Mar - Jun 2025)

Justification and Approval (J&A) *for Other Than Full and Open Competition*

X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

The CAPE-directed AoO is a one-and-done task that will not have follow-on or subsequent contract actions. Leveraging a highly qualified UARC was seen as an opportunity to tackle this directive as efficiently as possible. This effort is not the establishment of a program of record; rather, the program already exists. This AoO is a single research study to seek areas of improvement and efficiencies. In fact, results from this AoO potentially lend to future requirements that can be used for future competitions.

Currently, JHU/APL is the only organization that can meet our unique requirement set at the AFNWC. In the future, we plan to continue to do extensive market research including releasing RFIs and conducting industry days in order to connect with a wider potential group of respondents. Additional efforts will be made to specifically reach out to other UARCs and FFRDCs in order to see if some of their capabilities may align with other requirements going forward.

XI. Certification by the Contracting Officer.

As evidenced by my signature above, I certify that this justification and approval is accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.

Justification and Approval (J&A) for Other Than Full and Open Competition

Specific Guidance for Completing this Template

I. Agency and Contracting Activity. (FAR 6.303-2(b)(1))

Self-explanatory

II. Nature and description of the action being processed. (FAR 6.303-2(b)(2))

An individual J&A is for a single contract. State whether the action is a new contract or a modification to an existing contract (identify contract number) and identify the contract type(s) planned (e.g., firm-fixed-price, cost-plus-incentive-fee). If exception 2 is cited (unusual or compelling urgency), include the date of UCA/contract/modification issuance and amount.

An individual J&A cannot be used to support more than one contract action irrespective of the quantities or the dollar value stated therein. If a proposed contract will contain unpriced options (including NTE prices), those options must be supported by a separate J&A prior to option exercise. Stoechner Security Services, Inc., 248077.3, Oct. 27, 1992, 92-2 CPD ¶ 286 at 6. This principle applies with equal force and effect whenever a contracting officer seeks to exercise FAR 52.217-8 (Option to Extend Services) if the contract that incorporated that clause by reference is not a Service Contract Labor Standards-covered contract, as such contracts do not include wage determinations that establish "prevailing labor rates provided by the Secretary of Labor." FAR 52.217-8. See Major Contracting Services, Inc., B-401472, Sep. 14, 2009, 2009 CPD ¶ 170 at 6, mot. for reconsid. den., Department of the Army --Reconsideration, B-401472.2, Dec. 7, 2009, 2009 CPD ¶ 250 at 5-6. In the alternative, the J&A supporting the basic contract must be a Class J&A. Although a Class J&A may be written for multiple awards to a single source, or multiple awards to various sources, it must describe each proposed contract action separately so it is clear that each such action is within scope of that Class J&A. FAR 6.303-1(d).

III. Description of the supplies/services required to meet agency needs. (FAR 6.303-2(b)(3))

Describe the supplies, services, or supplies and services to be acquired. Identify the quantities of each item, the estimated delivery dates/periods of performance, the type of appropriation(s) that will acquire those supplies/services, the total estimated value of the acquisition (including options), and the methodology used to arrive at that total estimated value. Provide sufficient information to demonstrate to the approving official that the acquisition of intellectual property (IP) and associated IP rights will satisfy the program's requirements, acquisition strategy, life cycle sustainment plan, systems engineering plan, and test and evaluation master plan.

The program's requirements for IP and IP rights in the Request for Proposals (RFP) must be consistent with the program's acquisition strategy, life cycle sustainment plan, systems engineering plan, and test and evaluation master plan. Accordingly, approving officials will ensure this section of the J&A:

(1) States whether the CLIN structure will include separately-priced CLINs for intellectual property (IP) and IP rights. Once the DFARS is revised to implement 10 U.S.C. § 4236, Air Force contracting officers will be required to negotiate a fair and reasonable price for IP and associated IP rights. Air Force contracting officers must start thinking now how they will do so during sole-source and competitive negotiations and how the resulting contract will reflect the results of those negotiations. Otherwise, they may be caught flat-footed if the RFP did not include such separately-priced CLINs and the Director of Defense Pricing and Contracting issues the final rule implementing 10 U.S.C. § 4236 --the effective date of which occurs one day prior to the award date. See also FAR 7.105(b)(14)(iii) and DFARS 215.470(a);

(2) Lists the titles of all such IP (including digital models) to be to be acquired contained in Exhibits A-N of the draft Request for Proposals; and

(3) Identifies the type of IP rights to be acquired to those deliverables (including the IP rights to be acquired to contract administration information since the standard DFARS clauses do not grant the Air Force any license rights to that type of IP).

Mission-focused business leaders are encouraged to engage early in the acquisition life-cycle with industry regarding the subjects of IP and IP rights. They are also encouraged to consult with approving officials, designees, or both, regarding those subjects well in advance of submitting a draft J&A to the appropriate approving official.

For Class J&As, identify each contract action (contract, modification) to be authorized by the proposed J&A for each potential offeror. If the same information applies to more than one contract, it need only be stated once.

For ID/IQ or requirements contracts, use the maximum dollar value of the total estimated orders as the total estimated value of the

Justification and Approval (J&A) for Other Than Full and Open Competition

acquisition.

IV. Demonstration that the contractor's unique qualifications or nature of the acquisition requires the use of the authority cited above. (FAR 6.303-2(b)(5))

Provide detailed facts sufficient to justify the use of the particular authority cited. Contracting without providing for full and open competition shall not be justified on the basis of a lack of advance planning or concerns relating to the amount of funds available (e.g., expiring funds). (FAR 6.301(c)).

Check the applicable box below. Checking a box will display the text for that section.

☐ **A. Only One Responsible Source** (FAR 6.302-1, DFARS 206.302-1, and DFARS PGI 206.302-1)

☐ **B. Unusual and Compelling Urgency** (FAR 6.302-2, DFARS 206.302-2, and DFARS PGI 206.302-2)

☐ **C. Industrial Mobilization; or Engineering, Developmental, or Research Capability** (FAR 6.302-3)

☐ **D. Authorized or Required by Statute** (FAR 6.302-5)

☐ **E. National Security** (FAR 6.302-6)

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by FAR 5.2 and, if not, indicate which exception under FAR 5.202 applies. (FAR 6.303-2(b)(6); FAR 6.303-2(b)(8); FAR 6.303-2(b)(10))

The contracting officer shall issue a sources sought synopsis or an RFI, provide the date the synopsis was issued, the synopsis number, and a brief description of its content. Identify the number of responses received, the names of the respondents, the results of the screening process, and the rationale for determining the unacceptability of any respondents, unless exempted by the MAJCOM SCO or Operating Location SCO with rank of GO or SES, otherwise approval by the HCA is required. (FAR 6.302-1(d)(2); DFARS 206.302-1(d); DFARS PGI 206.302-1(d); AFFARS 6306.302-1(d); AFFARS MP5301.601(a)(i)).

Specify whether this acquisition will require a Notice of proposed Contract Action (NOCA) IAW FAR 5.201 and if not, provide the exception IAW FAR 5.202. If a NOCA was or will be publicized provide the dates or expected dates of publication of the NOCA. Address any other actions taken or planned to facilitate competition for this acquisition.

When using the authority granted by FAR 6.302-1, an RFI or Sources Sought Synopsis is mandatory. (DFARS PGI 206.303-2(b)(i)).

When using the authority granted by FAR 6.302-2, agencies must request offers from as many potential sources as is practicable under the circumstances unless the Government would be seriously injured if the agency complied with the time periods specified in FAR 5.203. (FAR 5.202(a)(2); FAR 603.2-2(b)(2)).

When using the authority granted by FAR 6.302-3, no synopsis is required if the proposed contract action is for utility services other than telecommunications services and only one source is available. (FAR 5.202(a)(5)).

When using the authority granted by FAR 6.302-5, no synopsis is required if the proposed contract action results from acceptance of a proposal under the Small Business Innovative Research (SBIR) program. (FAR 5.202(a)(7)).

When using the authority granted by FAR 6.302-6, agencies must request offers from as many potential sources as is practicable under the circumstances. (FAR 6.302-6(c)(3)). The fact that a proposed solicitation or contract action contains classified information, or that access to classified information may be necessary to submit a proposal or perform the contract does not, in itself exempt that proposed contract action from the synopsis requirement. (FAR 52.202(a)(1)). Under such circumstances, this section must identify what alternatives the program office used to compete this requirement (e.g., accessing the National Reconnaissance Office's (NRO) Acquisition Research Center's Central Contractor Registry database or the National Security Agency's (NSA) Acquisition Resource Center's Business Registry database to identify potential cleared offerors and summarize what outreach the program office conducted with those potential cleared offerors to determine their interest in the proposed acquisition).

If qualifying country sources have expressed interest, but will be excluded, provide supporting rationale.

Justification and Approval (J&A) for Other Than Full and Open Competition

VI. Determination by the contracting officer that the anticipated cost to the government will be fair and reasonable. (FAR 6.303-2(b)(7))

Include the following text, suitably tailored: "Based upon (1) certified cost or pricing data provided in the offeror's proposal, (2) the program office's technical analysis of the offeror's Basis of Estimates (BOE), and (3) inputs from the Defense Contract Management Agency, including from the Administrative Contracting Officer, the contracting officer expects they will be able to determine that the anticipated cost to the Government will be fair and reasonable."

VII. Description of the market research conducted and the results, or explain why market research was not conducted. (FAR 6.303-2(b)(8))

Discuss any market research conducted pursuant to FAR Part 10 (in addition to any actions described in Section VI above) and describe the results of that research. When other exceptions from the requirement to obtain full and open competition are relied upon, the market research might be limited to an examination of the acquisition history and experience with the marketplace under previous acquisitions for the same or similar items. Discuss what relevant documentation the contracting officer provided to respondents in a bidders library (e.g., capability development document, system engineering plan, system requirements document, statement of work/performance work statement, technical data package, compliance documents). Discuss how the contracting officer shared the Government's analysis of each respondent's response with that respondent.

If market research was not conducted, so state and provide the rationale.

VIII. Any other facts supporting the use of Other Than Full and Open Competition. (FAR 6.303-2(b)(9)(i))

Provide any other facts supporting the use of other than full and open competition, including an explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available. (FAR 6.303-2(b)(9)(i)).

IX. List of sources, if any, that expressed interest in the acquisition. (FAR 6.303-2(b)(10))

If all interested sources are identified in Section V, it is acceptable to state, "See Section V above."

X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before making subsequent acquisitions for the supplies or services required. (FAR 6.303-2(b)(11))

Describe any actions taken or to be taken to foster competition for future acquisitions of the supplies or services being acquired. Describe potential actions the program office will take to remove existing barriers to competition identified in the justification and include a milestone schedule for accomplishing those actions. For example, if the barrier to competing acquisition of the supplies and services described in Section III is the lack of IP deliverables or sufficient IP rights to those deliverables, identify and analyze what possible steps could be taken to:

- (a) Acquire those IP deliverables and associated IP rights,*
- (b) Implement a modular open system approach consistent with the program's capability development document, acquisition strategy, and system engineering plan (10 U.S.C. §§ 4401-4403), or*
- (c) Reverse engineer subsystems or components of the end items described in Section III.*

IAW DFARS PGI 206.304(a)(S-70)(ii), for a non-competitive follow-on acquisition to a previous award for the same supply or service supported by a J&A citing the authority at FAR 6.302-1, include a copy of the previous J&A and include a discussion of the actions planned to overcome barriers to competition established in the previous justification, the status of those actions, and the results of those actions. The approval authority shall determine whether the planned actions were completed. If the planned actions were not completed, the justification for the follow-on acquisition shall be approved by the approval authority one-level above the approval authority for the previous justification. If the Senior Procurement Executive (SPE) approved the previous justification, the approval remains at the SPE level.

XI. Certification by the Contracting Officer. (FAR 6.303-2(b)(12))

As evidenced by their signature, the contracting officer certifies that this justification is accurate and complete to the best of their

Justification and Approval (J&A) for Other Than Full and Open Competition

knowledge and belief.

XII. Certification by the technical/requirements personnel. (FAR 6.303-2(c))

As evidenced by their signatures, the technical and/or requirements personnel have certified that any supporting data contained herein, which is their responsibility, is both accurate and complete.
